

## BOARDS, COMMITTEES AND COMMISSIONS

### *9 Attachment 11*

**City of Waterville**  
**Appendix 2A**  
**Committee Charge: City Manager Evaluation Committee**  
**[Adopted 12-28-2023 by Ord. No. 199-2023]**

**Establishment & Regulation.**

City of Waterville, Resolution 34 — 2021  
1 M.R.S., Chapter 13, Freedom of Access  
City of Waterville Ethics Ordinance (Chapter 18)

**Purpose.**

The Committee is charged with conducting periodic performance evaluations of the City Manager.

**Membership.**

Membership shall be comprised of up to 3 City Councilors, for a term that coincides with their term on the City Council.

**Scope of Authority.**

The Committee members will be empowered to communicate with members of the business community, business associations, elected and appointed officials, City residents, City staff and any other person or entities it finds of use in carrying out its assignment. The result of its effort will be to provide the City Manager with clear expectations with the goal of successful job performance.

It is not authorized to make promises or enter into verbal or written agreements purporting to represent the City.

**Conduct of Business.**

The Committee is an official body of the City. As such, it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Committee may participate in a matter before the Committee where that member has a conflict of interest. If a question arises as to whether a member has a conflict of interest, after disclosure, the remaining members shall make that determination. The Committee may review the Ethics Ordinance or consult with the Solicitor on conflict of interest questions.

Evaluations must be conducted in accordance with the frequency detailed in the City Manager's employment contract, but not less than once annually.

## WATERVILLE CODE

### **Reporting.**

A Councilor who is a member of this Committee will report matters to the Council when it is deemed appropriate to do so, [or at a frequency otherwise determined by vote of the Council] at a minimum of once per year.